

TENTATIVE RULING FOR July 24, 2026

Department S22 – Judge David Driscoll

This court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. on the court day immediately before the hearing.

You may appear in person at the hearing although remote appearance by CourtCall is preferred during the Pandemic. (See www.sb-court.org/general-information/remote-access).

If you do not have Internet access or if you experience difficulty with the posted tentative ruling, you may obtain the tentative ruling by calling the department (S-22) at (909) 521-3529 or the Administrative Assistant (909) 708-8756, who prepared the ruling.

If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 pm the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling. Be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2401217

MA'LENNA CAPERS v. COUNTY OF SAN BERNARDINO, et al.

TENTATIVE RULING

This litigation concerns the lack of assistance and an alleged wrongful arrest. On February 5, 2024, Plaintiff Ma'Lenna Capers filed her Complaint against Defendant CA Hwy Patrol, and a later dismissed party (County of San Bernardino). With the filing of the operative First Amended Complaint, Defendant's name changed to California Highway Patrol, San Bernardino Area (CHP). The FAC pleads 3 causes of action: (1) negligence, (2) intentional infliction of emotional distress (IIED), and (3) libel.

The FAC alleges that on September 23, 2022, while on I-15 southbound, about 1.7 miles north of SR-138, Capers was maneuvering her vehicle to the side of the road due to not feeling well. As she moved over, another vehicle towing a U-Haul trailer struck the front bumper of her vehicle. After reaching the shoulder, two males in the other vehicle got out, with one opening Capers' door and attempting to take the keys and pull her out. The two men further got in her face and took her jewelry and cash that was in her vehicle. Upon the police arriving, it is alleged that instead of providing her medical emergency assistance, the officer questioned her about the incident and then arrested her for battery (§§10-11, 13-15).

Service of Process on Defendant CHP. On September 18, 2025, and March 10, 2026, the Court quashed prior service of process on CHP. In response, Plaintiff Capers served CHP via Marina Gregg, receptionist, at the Attorney General's Office at 455 Golden Gate Ave., Ste. 1100, San Francisco, CA on April 15, 2026, at 12:59 p.m. (5/11/26 Proof of Service of Summons; Exh. 1 to Capers' Decl.)

Specially appearing Defendant CHP moves to quash this service.

The service of a summons is the process by which the court acquires jurisdiction over a defendant in a civil action. (*MJS Enterprises Inc. v. Superior Court (Serpa)* (1984) 153 Cal.App.3d 555, 557 [“MJS Enterprises”].) Without substantial compliance with the statutory requirements for service of summons, personal jurisdiction is not conferred, even if the defendant has notice of the litigation. (*Ruttenberg v. Ruttenberg* (1997) 53 Cal.App.4th 801, 808; *MJS Enterprises, supra*, 153 Cal.App.3d at p. 557.)

A defendant, on or before the last day to plead, may serve and file a notice of motion to quash service of summons on the ground that the court lacks jurisdiction. (Code Civ. Proc., §418.10, subd. (a)(1).) When challenging service by a motion to quash, a plaintiff bears the burden of proving by a preponderance of the evidence the validity of the service and the court’s jurisdiction over the defendant by proving the facts requisite to effective service. (*Summers v. McClanahan* (2006) 140 Cal.App.4th 403, 413.)

Service of Summons can occur essentially in four manners: (1) personal service (Code Civ. Proc., §415.10); (2) substituted service (Code Civ. Proc., §415.20); (3) by mail with copies of notices of acknowledgment (Code Civ. Proc., §415.30); and (4) by publication if the person cannot be served otherwise (Code Civ. Proc., §415.50).

Analysis

Defendant CHP is not disputing receipt of the Summons and FAC, or that personal service was not perfected on a proper agent for the Attorney General’s office, per Government Code, section 955.4, subdivision (a). (Canter Decl. at ¶2, Exh. A.) The dispute concerns that the Summons lacked proper form and content in two regards.

First. Defendant CHP argues that the Summons did not identify the party to be sued because on the Attorney General’s Civil Service of Process Cover Sheet, Plaintiff’s process server listed that the documents were for “County of San Bernardino, California Highway Patrol.” (Exh. A to Canter’s Decl.) However, an internal cover sheet has no bearing on whether the Summons properly identifies the parties. Rather, per Code of Civil Procedure section 412.20, subdivision (a)(2), the Summons is to name the parties to the action. The Amended Summons properly included the Defendants’ names, as they existed, within the FAC.

Second. Defendant CHP argues that the served Summons did not properly identify its capacity. The issued Summons indicates CHP is being served as (i) an individual defendant and (ii) on behalf of a corporation (Code Civ. Proc., §416.10). (Exh. A to Canter’s Decl.)

Now, the courts have found that service is defective if a summons fails to identify a corporation or unincorporated entity’s proper capacity per section 412.30. (*MJS Enterprises, supra*, 153 Cal.App.3d at p. 558; *Schering Corp. v. Superior Court (Ingraham)* (1975) 52 Cal.App.3d 737, 742.) Furthermore, compliance with section 412.30 is mandatory, but it can be satisfied through substantial compliance. (*Mannesmann DeMag., Ltd. v. Superior Court (Welch)* (1985) 172 Cal.App.3d 1118, 1123.)

However, CHP is a public entity, not a corporation or unincorporated association. CHP offers no authority that the notice provision of section 412.30 would apply to it, a public entity. (See, e.g., *Solvey v. Mehta* (E.D.Cal. 2026) 2026 WL 1162717, at p. *4 [“Defendants [CDCR, CCHCS, and their employees] cite no authority to treat them as corporations or unincorporated associations for purposes of §412.30. Thus, §412.30 does not apply....”].) Furthermore, no case authority applying section 412.30 to a public entity was found. (See also *Solvey v. Mehta, supra*, 2026 WL 1162717, at p. *4 [“The Court has not located any authority holding that completion of the ‘Notice to the Person Served’ section on Judicial

Council Form SUM-100 is required to effect valid service on either individual defendants or state agencies....”].) The *Solvey* decision was issued April 29, 2026, after this courts previous ruling of March 10, 2026. The court finds the *Solvey* decision persuasive.

As the Notice provision of the Summons has no application to the CHP, a public entity, the fact that the Summons had marked CHP was being sued as an individual and corporation is irrelevant and does not render service defective.

TENTATIVE RULING

Defendant CHP’s Motion to Quash is denied. Defendant is to file and serve a responsive pleading within 30 days of this ruling.